IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CA (CAA)/41 & 42/(CHE)/2022

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement (Demerger)*

Between

M/s. Poppys Hotel Private Limited
(CIN: U55101TZ1994PTC004944)
57 Appachi Nagar Main Road,
Kongu Nagar Extension,
Tirupur 641 607 ... *1st Petitioner*

M/s. Home Trotter India Private Limited
(CIN: U51399TZ2006PTC034052)
57 Appachi Nagar Main Road,
Kongu Nagar Extension,
Tirupur 641 607 ...*2nd Petitioner*

And

Their Respective Shareholders and Creditors

Order Pronounced on 2nd May 2022

CORAM:

Justice (Retd.) S. RAMATHILAGAM, MEMBER (JUDICIAL)
ANIL KUMAR B, MEMBER (TECHNICAL)

For Petitioners : Mr. S. Sathyanarayanan, Advocate

COMMON ORDER

Justice (Retd.) S. RAMATHILAGAM, MEMBER (JUDICIAL)

Under Consideration are two separate Applications filed by the Petitioners above named for the purpose of the approval of the Composite Scheme of Arrangement (Demerger) (hereinafter referred to as the 'SCHEME') as contemplated between the Petitioner Companies viz. **M/s. Poppys Hotel Private Limited** (1st Petitioner) and **M/s. Home Trotter India Private Limited** (2nd Petitioner) under Section 230 to 232 and other applicable provisions of the Companies Act, 2013 (hereinafter referred to as

'the Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter referred to as *'the Rules'*) pursuant to the Scheme proposed between the Petitioner Companies and the said Scheme is also annexed to the typed set filed along with the above mentioned applications. . Accordingly, the Applicant Companies herein have sought the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
M/S. POPPYS HOTEL PRIVATE LIMITED	To dispense with	To dispense with	To dispense with
M/S. HOME TROTTER INDIA PRIVATE LIMITED	To dispense with	To dispense with	To dispense with

2. Two separate affidavits in support of the above applications sworn for and behalf of the applicant Companies have been filed by one ***S K Hari Arumugam*** in the capacity of Director of *M/s. Poppys Hotel Private Limited* and by one ***A Sivakumar*** in the capacity of Director of the M/s. Home Trotter India Private Limited along with the application and it is also represented that the Registered office of the Applicant Companies are situated within the jurisdiction of Registrar of Companies, Coimbatore.

3. **M/s. POPPYS HOTEL PRIVATE LIMITED (CA(CAA)/41 (CHE)2022)**

(i) There are **5** (Five) Equity Shareholders and Certificate issued by the Chartered Accountant to this effect is placed at page 208 of the typed set filed with the application and the consent affidavit for the same is placed at Page 209 to 218 of the typed set filed along

with the application seeking dispensation with holding of meeting.

(ii) There is **1** (One) Secured Creditor and the Certificate issued by the Chartered Accountant to this effect is placed at page 135 and the consent affidavit for the same is placed at Page 136 to 137 of the typed set filed along with the application seeking dispensation with holding of meeting.

(iii) There are **5** (Five) Unsecured Loan Creditor and the Certificate issued by the Chartered Accountant to this effect is placed at page 197 of the typed set filed with the application and the consent affidavit for the same is placed at Page 198 to 207 of the typed set filed along with the application seeking dispensation with holding of meeting.

(iv) There are **27** (Twenty Seven) Unsecured Trade Creditor and the Certificate issued by the Chartered Accountant to this effect is placed at page 138 of the typed set filed with the application and the consent affidavit for the same is placed at Page 140 to 196 of the typed set filed along with the application seeking dispensation with holding of meeting.

4. **M/S. HOME TROTTER INDIA PRIVATE LIMITED (CA(CAA)/42(CHE)2022)**

(i) There are **3** (Three) Equity Shareholders and Certificate issued by the Chartered Accountant to this effect is placed at Page No. 180 and consent affidavits given by all of them are placed between Page Nos.181 to 187 of the typed set filed with the application and sought dispensation with holding of meeting.

(ii) There are **1** (One) Secured Creditors and the certificate issued by the Chartered Accountant to this effect and the consent affidavit for the same is placed at Page 150 and 151 – 152 of the typed set filed along with

the application seeking dispensation with holding of meeting.

(iii) There are **3** (Three) Unsecured Loan Creditor and the Certificate issued by the Chartered Accountant to this effect is placed at page 173 of the typed set filed with the application and the consent affidavit for the same is placed at Page 174 to 179 of the typed set filed along with the application seeking dispensation with holding of meeting.

(iv) There are **8** (Eight) Unsecured Trade Creditor and the Certificate issued by the Chartered Accountant to this effect is placed at page 153 of the typed set filed with the application and the consent affidavit for the same is placed at Page 154 to 172 of the typed set filed along with the application seeking dispensation with holding of meeting.

5. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

6. From the certificate of incorporation filed, it is evident that the *M/s. Poppys Hotel Private Limited* is a Private limited company incorporated under the provisions of Companies Act, 1956 on 23.03.1994. The Authorized Share Capital of the Transferor Company is ₹13,00,00,000/- (Rupees Thirteen Crore Only) consisting of 1,30,000 Equity Shares of Rs.1000/- each. The Issued, Subscribed and Paid-up Capital of *M/s. Poppys Hotel Private Limited* is ₹9,01,67,000/- (Rupees Nine Crore One Lakh Sixty Seven Thousand Four Hundred Only) consisting of 90,167 Equity Shares of Rs.1000/- each. The Registered office address of

the Company is situated at No. 57 Appachi Nagar Main Road, Kongu Nagar Extension, Tirupur 641 607.

7. From the certificate of incorporation filed, it is evident that the *M/s. Home Trotter India Private Limited* is a Private limited company incorporated under the provisions of Companies Act, 2013 on 31.05.2006. The Authorized Share Capital of the Transferee Company is ₹1,00,00,000 (Rupees One Crore Only) consisting of 1,00,000 Equity Shares of Rs.100/- each. The Issued, Subscribed and Paid-up Capital of *M/s. Home Trotter India Private Limited* is ₹99,04,000/- (Rupees Ninety Nine Lakh and Four Thousand Only) consisting of 3,00,00,000 Equity Shares of Rs.10/- each. The Registered office address of the Company is situated at . 57 Appachi Nagar Main Road, Kongu Nagar Extension, Tirupur 641 607.

8. The Applicant Companies have filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2021 and certified Financial Statements as on 30.11.2021.

9. The Boards of Directors of the Applicant Companies vide meeting held on 1st December 2021 have unanimously approved the proposed Scheme as contemplated above and copies of

resolutions passed thereon have been placed on record by the applicant companies.

10. The Appointed date as specified in the Scheme is 01.12.2021.

11. The Statutory Auditors of the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the Statutory Auditors issued in this regard is placed at pages 219 and 188 of the typed set filed along with the respective Company Applications.

12. Upon consideration of the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions : -

A. IN RELATION TO M/S. POPPYS HOTEL PRIVATE LIMITED:

(i) **With respect to Equity shareholders:**
Since it is represented by the Company that there are 5 Equity Shareholders in the Company whose consent by way of Affidavit have been obtained and placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**
Since it is represented by the Company that there is 1 Secured Creditor in the Company whose consent by way of Affidavit has been obtained and placed on record, the

necessity of convening and holding the meeting is ***dispensed with.***

(iii) **With respect to Unsecured Loan Creditors:**
Since it is represented by the Company that there are 5 Unsecured Loan Creditor in the Company whose consent by way of Affidavit have been obtained and placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(iv) **With respect to Unsecured Trade Creditors:**
Since it is represented by the Company that there are 27 Unsecured Trade Creditor in the Company whose consent by way of Affidavit have been obtained and placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

B. IN RELATION TO THE M/S. HOME TROTTER INDIA PRIVATE LIMITED:

(i) **With respect to Equity shareholders:**
Since it is represented by the Company that there are 3 Equity Shareholders in the Company whose consent by way of Affidavit have been obtained and placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**
Since it is represented by the Company that there is 1 Secured Creditor in the Company whose consent by way of Affidavit has been obtained and placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(iii) **With respect to Unsecured Loan Creditors:**
Since it is represented by the Company that there are 3 Unsecured Loan Creditor in the Company whose consent by way of Affidavit have been obtained and placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(iv) **With respect to Unsecured Trade Creditors:**
Since it is represented by the Company that there are 8 Unsecured Trade Creditor in the Company whose consent by way of Affidavit have been obtained and placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

14. Accordingly, the Applications stand **Allowed** and the Applicant Companies are directed to file the second motion application within a period of 14 days from the date of receipt of this order.

-Sd-
B. ANIL KUMAR
MEMBER (TECHNICAL)

-Sd-
Justice (Retd.) S. RAMATHILAGAM
MEMBER (JUDICIAL)

Mohana Priya